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California passes 11% gun, ammo excise tax critics say is unconstitutional

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Author: Kenneth Schrupp | The Center Square | Section: News | 392 Words
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(The Center Square) – The California legislature passed a new excise tax specifically on firearms, firearm precursor parts and ammunition. The 11% levy, paid in addition to sales taxes, would take effect on July 1, 2024. The state has a base statewide sales tax of 7.25% with most cities and counties imposing additional sales taxes, meaning buyers of guns, parts and ammunition would pay taxes of at least 18.25% on their purchases in California. Critics of the measure say it exceeds legislative authority by taxing a constitutional right.

AB 28, introduced by Assemblymembers Jesse Gabriel, D – Woodland Hills, and Kevin McCarthy, D – Sacramento, would direct tax revenues from the measure to a new Gun Violence Prevention and School Safety Fund. They claim the bill is analogous to a federal excise tax firearms and ammunition since 1919 of 10-11% that has been used to fund conservation efforts to remediate ecological effects of hunting, citing the National Rifle Association's support for these excise tax-funded conservation efforts. The Gun Violence Prevention and School Safety Fund, estimated to take in $160 million per year, will prioritize "reducing and preventing gun violence" in "communities that are disproportionately impacted by shootings and gun homicides."

"It's shameful that gun manufacturers are reaping record profits at the same time that gun violence has become the leading cause of death for kids in the United States," said Gabriel. "This bill will fund critical school safety measures and proven violence prevention programs that will save lives and protect communities across California."

However, the National Rifle Association Institute for Legislative Action claimed in a September 18 essay the measure could be unconstitutional for serving as a discriminatory tax on a right, citing the 1983 U.S. Supreme Court case Minneapolis Star and Tribune Co. v. Minnesota Com'r of Revenue, in which a tax on paper and ink used in publication was an unconstitutional infringement on First Amendment Rights. In its ruling, the court stated, "A power to tax differentially, as opposed to a power to tax generally, gives a government a powerful weapon against the taxpayer selected."

"Such a tax targeted at gun owners, would be a similarly suspect attack on Second Amendment rights," wrote the National Rifle Association Institute for Legislative Action.

"Rest assured a legal challenge will be forthcoming on this matter as well," said Gun Owners of California Executive Director Sam Paredes in a public statement. "It is impermissible to tax an enumerated constitutional right."

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